

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2741

By: Caldwell (Trey)

AS INTRODUCED

An Act relating to game and fish; amending 29 O.S. 2021, Section 4-101; providing for nonresident landowners to qualify for residential hunting licenses; requiring certain documentation; amending 29 O.S. 2021, Section 4-112; allowing nonresidential landowners to qualify for residential hunting licenses; requiring certain documentation; providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 29 O.S. 2021, Section 4-101, as amended by Section 1, Chapter 208, O.S.L. 2022 (29 O.S. Supp. 2024, Section 4-101), is amended to read as follows:

Section 4-101. A. All licenses and permits issued by the Director of Wildlife Conservation, the Department of Wildlife Conservation or by any of its agents shall be used only in conformity with the provisions of this title and the rules promulgated by the Oklahoma Wildlife Conservation Commission.

B. All persons making application for any licenses required by this section shall produce a valid license to operate a motor

1 vehicle or other positive proof of identification, age and residency
2 and any such license issued shall show such data as well as the date
3 and time of issuance.

4 C. Instead of proof of residency, a nonresident who owns a
5 minimum of eighty (80) acres of noncommercial lands in Oklahoma, may
6 show proof of land ownership and property taxes paid on said
7 property for the previous year to qualify for residential hunting
8 license rates. Such proof must be provided to the Oklahoma
9 Department of Wildlife Conservation.

10 ~~C.~~ D. All licenses are nontransferable. No person shall
11 alter, change, lend or transfer any license. No person shall use or
12 borrow a license which has not been issued to that person by the
13 Director, the Department or by any of its agents pursuant to the
14 provisions of this section.

15 ~~D.~~ E. No person may engage in activities requiring a license
16 without that person's carrying such license on their person and
17 producing the same for an inspection upon the demand of any Oklahoma
18 citizen or game warden.

19 ~~E.~~ F. Any person required to produce a license must also
20 identify themselves as the person to whom such license was issued,
21 and failure or refusal to comply shall be deemed prima facie
22 evidence of a violation of this section.

23 ~~F.~~ G. Unless otherwise provided in this Code:
24

1 1. Licenses issued pursuant to paragraph 1 of subsection C and
2 paragraphs 1 and 2 of subsection E of Section 4-112 of this title
3 and paragraphs 1 and 2 of subsection B of Section 4-113 of this
4 title and paragraphs 1 and 2 of subsection C and paragraph 1 of
5 subsection E of Section 4-110 of this title shall expire one (1)
6 year after the date issued. Unless otherwise specified, all other
7 licenses shall expire December 31 for the year issued; and

8 2. Any person convicted of violating any of the provisions of
9 this title may have any or all licenses held by that person or the
10 privilege of applying for, purchasing or exercising the benefits
11 conferred by the licenses revoked by the Department in accordance
12 with rules promulgated by the Commission or by a court of competent
13 jurisdiction for a period of not less than one (1) year. For
14 purposes of this paragraph, a court conviction, a plea of guilty, a
15 plea of nolo contendere, the imposition of a deferred or suspended
16 sentence by a court, or forfeiture of bond shall be deemed a
17 conviction.

18 ~~G.~~ H. Should any license or permit issued pursuant to Part 1 of
19 Article IV of this title be lost or destroyed, duplicates will be
20 issued by the Department at a fee of One Dollar and fifty cents
21 (\$1.50) .

22 ~~H.~~ I. Upon harvesting any whitetail or mule deer, or any other
23 wildlife where the hunter, according to Commission rules, is
24

1 required to check the wildlife in at a Department check station, the
2 taker of the wildlife shall:

3 1. Securely attach the name of the taker, time of harvest, date
4 of harvest and license number to the carcass of the wildlife;

5 2. Check in the carcass of the wildlife electronically using
6 the online check station provided on the official website of the
7 Oklahoma Department of Wildlife Conservation or as prescribed by
8 rule of the Commission, within twenty-four (24) hours of leaving the
9 hunt area and in all cases prior to processing the carcass; and

10 3. Not remove evidence of the sex of the animal until after the
11 carcass of the animal has been checked in.

12 ~~F.~~ J. It shall be unlawful for any license or permit holder to
13 knowingly make a false statement or give false information to any
14 authorized hunter check station or to an authorized Department
15 employee when complying with the provisions of subsection H of this
16 section. Information which may be collected at a Department check
17 station shall include but not be limited to the name, address,
18 license or permit number and signature of the taker, the date, time,
19 county, method or weapon of the kill, sex and weight of carcass,
20 whether or not the animal was taken on public hunting land and if so
21 in what area, or any other information which may be required by the
22 Commission.

23 ~~F.~~ K. 1. Any person convicted of violating the provisions of
24 this section or of making a false statement or giving any false

1 information in order to acquire any license or permit, pursuant to
2 the provisions of this section, shall be punishable by a fine of not
3 less than One Hundred Dollars (\$100.00) nor more than Two Hundred
4 Fifty Dollars (\$250.00), or by imprisonment in the county jail for a
5 period not to exceed ten (10) days, or by both such fine and
6 imprisonment. Any person convicted of a second or subsequent
7 violation of the provisions of this section or of making a false
8 statement or giving any false information in order to acquire any
9 license or permit, pursuant to the provisions of this section, shall
10 be punishable by a fine of not less than Two Hundred Fifty Dollars
11 (\$250.00) nor more than Seven Hundred Fifty Dollars (\$750.00), or by
12 imprisonment in the county jail for a period not to exceed ten (10)
13 days, or by both such fine and imprisonment.

14 2. Any hunting or fishing license issued to a person by the
15 Department of Wildlife Conservation shall be automatically revoked
16 upon conviction of the person of violating the provisions of this
17 section. The revocation shall be for a period set by the court of
18 not less than one (1) year nor more than ten (10) years. If the
19 court does not set a period, the revocation shall be for one (1)
20 year from the date of the conviction. During this period of
21 revocation, the Department shall not issue the person a hunting or
22 fishing license. If the court does not set a revocation period, the
23 Department shall not issue that person a license within one (1) year
24 of the conviction of the person pursuant to this section. A person

1 who has a license or permit revoked pursuant to this section shall
2 surrender the revoked license or permit to the court, or the court
3 may order the defendant to surrender the license or permit directly
4 to an officer from the Department of Wildlife Conservation present
5 at the hearing. If the license or permit is surrendered to the
6 court, the court shall send the Department of Wildlife Conservation
7 the revoked license. The court shall also send the Department a
8 copy of the judgment of conviction. For purposes of this section,
9 "conviction" shall include a plea of guilty or nolo contendere to an
10 offense or the imposition of deferred adjudication for an offense.
11 In lieu of sending a paper copy of the documents and information
12 required by this subsection, the court clerk may transmit the
13 conviction information by using an electronic method authorized by
14 the Department of Wildlife Conservation.

15 ~~K.~~ L. Any person who has had their license privileges revoked
16 shall not be entitled to purchase, apply for, or exercise the
17 benefits conferred by any license until the revocation period has
18 expired or the person has obtained approval from the Director. Any
19 person violating the provisions of this subsection, upon conviction,
20 shall be punished by a fine of not more than Five Hundred Dollars
21 (\$500.00), or by imprisonment in a county jail for a term of not
22 more than ninety (90) days or by both the fine and imprisonment.
23 Upon conviction under this subsection, the previously granted
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1 license revocation period shall be extended by two (2) additional
2 years.

3 SECTION 2. AMENDATORY 29 O.S. 2021, Section 4-112, as
4 last amended by Section 3, Chapter 6, O.S.L. 2024 (29 O.S. Supp.
5 2024, Section 4-112), is amended to read as follows:

6 Section 4-112. A. Except as otherwise provided for in the
7 Oklahoma Wildlife Conservation Code or the Oklahoma Farmed Cervidae
8 Act, no person may hunt, pursue, trap, harass, catch, kill, take or
9 attempt to take in any manner, use, have in possession, sell, or
10 transport all or any portion of any wildlife except fish, without
11 having first procured a license from the Department of Wildlife
12 Conservation. The Oklahoma Wildlife Conservation Commission shall
13 designate a consecutive Saturday and Sunday in September of each
14 year as free hunting days in which residents of this state may hunt
15 without first procuring a hunting license pursuant to the provisions
16 of this section.

17 B. The following legal residents of Oklahoma shall be exempt
18 from the annual hunting license requirement of paragraph 1 of
19 subsection F of this section and the following nonresidents shall be
20 exempt from the annual nonresident hunting licenses required
21 pursuant to paragraph 1 of subsection C of this section:

- 22 1. Legal residents under eighteen (18) years of age;
- 23 2. Legal residents sixty-five (65) years of age or older
- 24 provided they have obtained a senior citizen lifetime hunting or

1 combination hunting and fishing license pursuant to the provisions
2 of Section 4-114 of this title;

3 3. Legal resident veterans having a disability of sixty percent
4 (60%) or more and registered with the veterans registry created by
5 the Oklahoma Department of Veterans Affairs; provided, that if the
6 veteran has previously received an exemption pursuant to this
7 paragraph, no registration with the veterans registry shall be
8 required;

9 4. Legal resident owners or tenants who hunt on land owned or
10 leased by them;

11 5. Any nonresident under eighteen (18) years of age;

12 6. Legal residents having a proven disability which renders
13 them nonambulatory and confines them to a wheelchair, as certified
14 by a physician licensed in this state or in any state which borders
15 this state;

16 7. Any legal resident or nonresident under eighteen (18) years
17 of age who is in the physical custody of a child care facility as
18 defined by Section 402 of Title 10 of the Oklahoma Statutes; and

19 8. Any legal resident or nonresident hunting, pursuing,
20 trapping, harassing, catching, killing, taking, or attempting to
21 take in any manner any species of rattlesnake during an organized
22 rattlesnake-hunting event or festival and who has a rattlesnake
23 permit issued pursuant to Section 4-143 of this title.

1 C. Except as otherwise provided for in the Oklahoma Wildlife
2 Conservation Code, the nonresident hunting licenses issued pursuant
3 to this section and the fee for each license shall be:

4 1. Annual hunting license for nonresidents which expires one
5 (1) year after the date of issuance - Two Hundred Eight Dollars
6 (\$208.00);

7 2. Gun hunting license for deer for nonresidents which shall be
8 valid for hunting all deer allowed during the current calendar year
9 deer gun season - Five Hundred Dollars (\$500.00) in addition to the
10 nonresident annual hunting license required in paragraph 1 of this
11 subsection;

12 3. Archery hunting license for deer for nonresidents which
13 shall expire on January 15 of the calendar year after the year
14 purchased or, if purchased during the deer archery season, it shall
15 expire at the end of that deer archery season - Five Hundred Dollars
16 (\$500.00) in addition to the nonresident annual hunting license
17 required in paragraph 1 of this subsection;

18 4. Primitive firearms hunting license for deer for nonresidents
19 which shall be valid for hunting all deer allowed during the current
20 calendar year deer primitive firearms season - Five Hundred Dollars
21 (\$500.00) in addition to the nonresident annual hunting license
22 required in paragraph 1 of this subsection;

23 5. Hunting license for antelope for nonresidents - Five Hundred
24 Five Dollars (\$505.00);

1 6. Hunting license for elk for nonresidents - Five Hundred Five
2 Dollars (\$505.00);

3 7. Five-day hunting license for nonresidents hunting game other
4 than deer, antelope, elk, quail, turkey, bear, or waterfowl -
5 Seventy-four Dollars (\$74.00);

6 8. Annual youth hunting license for nonresidents under eighteen
7 (18) years of age, which shall include all species and all seasons
8 for which a hunting license is required - One Hundred Fifty Dollars
9 (\$150.00);

10 9. Five-day youth hunting license for nonresidents under
11 eighteen (18) years of age, which shall include all species and all
12 seasons for which a hunting license is required - Seventy-five
13 Dollars (\$75.00); and

14 10. Five-day hunting license for nonresidents hunting winged
15 upland game, excluding wild turkey, in a commercial hunting area -
16 Fifteen Dollars (\$15.00).

17 D. These licenses shall be required for hunting in a commercial
18 hunt area:

19 1. Five-day hunting license for nonresidents hunting big game
20 or combination big game - Seventy-four Dollars (\$74.00);

21 2. Ten-day hunting license for nonresidents hunting small game
22 and upland winged game, excluding turkeys - Twenty Dollars (\$20.00);
23
24

1 3. Annual hunting license for nonresidents hunting big game or
2 combination big game - One Hundred Seventy-five Dollars (\$175.00);
3 and

4 4. Five-day hunting license for nonresidents hunting winged
5 upland game, excluding wild turkey, in a commercial hunting area -
6 Fifteen Dollars (\$15.00).

7 E. For the purpose of hunting in a commercial hunting area,
8 nonresidents who acquire a license pursuant to subsection D of this
9 section shall be exempted from licensure requirements in subsection
10 C of this section.

11 F. Except as otherwise provided, the resident hunting licenses
12 issued pursuant to this section and the fee for each license shall
13 be:

14 1. Annual hunting license for residents eighteen (18) years of
15 age and older - Thirty-five Dollars (\$35.00);

16 2. Annual youth hunting license for residents under eighteen
17 (18) years of age, which shall include all species and all season
18 for which a hunting license is required - Twenty-five Dollars
19 (\$25.00);

20 3. Ten-day hunting license for residents for small game and
21 upland winged game, excluding wild turkeys in a commercial hunting
22 area - Five Dollars (\$5.00);

23 4. Five-year disability hunting combination hunting/fishing
24 license for residents for at least six (6) months who are receiving

1 Social Security Disability benefits, Supplemental Security Income
2 benefits or disability benefits under the Railroad Retirement Act,
3 45 U.S.C.A., Section 231a, or residents who are one-hundred-percent
4 disabled and are receiving disability payments from the Multiple
5 Injury Trust Fund pursuant to Section 31 of Title 85A of the
6 Oklahoma Statutes - Twenty Dollars (\$20.00);

7 5. Gun hunting license for deer for residents eighteen (18)
8 years of age or older, which shall include all deer allowed for
9 harvesting during gun season - Thirty-five Dollars (\$35.00). The
10 following persons shall be exempt:

11 a. residents with proper certification from the United
12 States Department of Veterans Affairs or its
13 successor, certifying that the person is a disabled
14 veteran in receipt of compensation at the one-hundred-
15 percent rate and registered with the veterans registry
16 created by the Oklahoma Department of Veterans
17 Affairs; provided that if the veteran has previously
18 received an exemption pursuant to this subparagraph,
19 no registration with the veterans registry shall be
20 required, and

21 b. residents hunting in big game or combination big game
22 and upland game commercial hunting areas;

23 6. Archery hunting license for deer for residents eighteen (18)
24 years of age or older, which shall include all deer allowed for

1 harvesting during archery season - Thirty-five Dollars (\$35.00).

2 The following persons shall be exempt:

3 a. residents with proper certification from the United
4 States Department of Veterans Affairs or its
5 successor, certifying that the person is a disabled
6 veteran in receipt of compensation at the one-hundred-
7 percent rate and registered with the veterans registry
8 created by the Oklahoma Department of Veterans
9 Affairs; provided that if the veteran has previously
10 received an exemption pursuant to this subparagraph,
11 no registration with the veterans registry shall be
12 required, and

13 b. residents hunting in big game or combination big game
14 and upland game commercial hunting areas;

15 7. Primitive firearms hunting license for deer for residents
16 eighteen (18) years of age or older, which shall include all deer
17 allowed for harvesting during primitive firearm season - Thirty-five
18 Dollars (\$35.00). The following persons shall be exempt:

19 a. residents with proper certification from the United
20 States Department of Veterans Affairs or its
21 successor, certifying that the person is a disabled
22 veteran in receipt of compensation at the one-hundred-
23 percent rate and registered with the veterans registry
24 created by the Oklahoma Department of Veterans

Affairs; provided that if the veteran has previously received an exemption pursuant to this subparagraph, no registration with the veterans registry shall be required, and

b. residents hunting in big game or combination big game and upland game commercial hunting areas;

8. Hunting license for elk for residents - Fifty Dollars (\$50.00). Residents hunting in big game or combination big game and upland game commercial hunting areas shall be exempt from this license;

9. Hunting license for antelope for residents - Fifty Dollars (\$50.00). Residents hunting in big game or combination big game and upland game commercial hunting areas shall be exempt from this license.

G. For all resident hunting licenses, a nonresident may qualify for residential license if that person owns a minimum of eighty (80) acres of noncommercial land in Oklahoma, has paid property tax on that land for the previous year, and has provided proof of both ownership and paid taxes to the Oklahoma Department of Wildlife Conservation.

H. The provisions of this section shall not be construed to require a hunting license, resident or nonresident, of any person merely because the person participates, as owner or handler of an entry, as an official, or as a spectator in the conduct of a field

1 trial or performance test of dogs, whether a resident or nonresident
2 of the State of Oklahoma. No license to hunt shall be required of
3 any person engaged in training or working dogs, provided that person
4 is in no way engaged in hunting and does not take or attempt to take
5 in any manner any game.

6 ~~H.~~

7 I. 1. Any person arrested for hunting game other than deer,
8 antelope, elk, bear or turkey without a valid hunting license as
9 required by the provisions of subsection A of this section may
10 purchase a substitute temporary thirty-day license from the
11 arresting game warden in lieu of posting bond. Proof of hunter
12 safety certification will not be required for the temporary
13 substitute license. The fee for a substitute license purchased
14 pursuant to the provisions of this subsection shall be:

- 15 a. for legal residents, One Hundred Dollars (\$100.00),
16 and
17 b. for nonresidents, Three Hundred Dollars (\$300.00).

18 2. Except as otherwise provided for by this subsection, the
19 fees from licenses purchased pursuant to the provisions of this
20 subsection shall be deposited in the Wildlife Conservation Fund to
21 be used exclusively for developing, managing, preserving, and
22 protecting wildlife and wildlife habitat.

23 ~~I.~~ J. Any person producing proof in court that a current
24 hunting license issued by the Department of Wildlife Conservation to

1 that person was in force at the time of the alleged offense shall be
2 entitled to dismissal of a charge of violating this section upon
3 payment of court costs. If proof of a current hunting license
4 issued by the Department to the person that was in force at the time
5 of the alleged offense is presented to the court or district
6 attorney within seventy-two (72) hours after the violation, the
7 charge shall be dismissed without payment of court costs.

8 ~~J.~~ K. Unless a substitute license is purchased as provided for
9 by subsection ~~H~~ I of this section, any resident convicted of
10 violating the provisions of this section shall be punished by the
11 imposition of a fine of not less than Twenty-five Dollars (\$25.00)
12 nor more than Two Hundred Dollars (\$200.00), or by imprisonment in
13 the county jail for a period not to exceed thirty (30) days, or by
14 both.

15 ~~K.~~ L. Unless a substitute license is purchased as provided for
16 by subsection ~~H~~ I of this section, any nonresident convicted of
17 violating the provisions of this section shall be punished by the
18 imposition of a fine of not less than Two Hundred Dollars (\$200.00)
19 nor more than Five Hundred Dollars (\$500.00), or by imprisonment in
20 the county jail for a period not to exceed six (6) months, or by
21 both.

22 ~~L.~~ M. The Oklahoma Wildlife Conservation Commission shall
23 promulgate any rules necessary to implement the provisions of this
24 section.

SECTION 3. This act shall become effective November 1, 2025.

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